

Dorisatti Dorisetti Sathynarayana vs The Singareni Collieries Company ... on 9 March, 2022

Author: T.Vinod Kumar

Bench: T.Vinod Kumar

HONOURABLE SRI JUSTICE T.VINOD KUMAR

WRIT PETITION No.85 of 2022

ORDER:

This Writ Petition is filed under Article 226 of the Constitution of India for grant of Writ of Mandamus declaring the impugned proceedings Ref.No.CRP/PER/WEL/DE/4305 dt.13-08-2019 issued by 2nd respondent and proceedings Ref.No.NMR/KK-1/W/O14/1258 dt.01-09-2019 issued by 4th respondent wherein the said respondents have rejected the claim of petitioners for providing dependent employment to the 2nd petitioner, who is the son of 1st petitioner.

2. Heard Sri M.Surender Rao, learned Senior Counsel appearing for learned counsel for petitioner and Sri J.Sreenivasa Rao, learned Standing Counsel appearing for respondents.

3. Despite the matter having undergone two adjournments on 04-01-2022 and 25-01-2022, till date no counter-affidavit is filed. Hence, this Court proceeded with the hearing of the matter since it is contended that the matter is squarely covered by the decision of the Hon'ble Court Supreme Court, which has been followed by this Court ::2::

in not less than three Writ Petitions filed questioning similar inaction on the part of respondents.

4. Petitioners contend that 1st petitioner was a regular employee of 1st respondent and was declared medically invalidated; that in terms of the scheme framed by 1st respondent, 1st petitioner is entitled to nominate one of the family members for dependent employment; that accordingly, 1st petitioner nominated the 2nd petitioner for being provided with dependent employment; and that the said request of 1st petitioner has been rejected by the 1st respondent on the ground that 2nd petitioner is born to the second wife of 1st petitioner and as such he is not entitled for being considered for providing dependent employment.

5. Petitioners contend that the action of respondents in rejecting the request of 1st petitioner on the ground that 2nd petitioner is born to his second wife, is contrary to the law laid down by the Hon'ble Supreme Court in Union of India Vs. V.R.Tripathi¹. It is also contended that subsequent to the law laid down by the Supreme Court, this Court in similar circumstances, was pleased to set aside the (2019) 14 SCC 646 ::3::

similar orders passed by the 1st respondent in W.P.Nos.26926 of 20019, 5922 of 2020 and 7432 of 2020.

6. It is to be noted that respondents in the above three Writ Petitions are same as 1st respondent in the present Writ Petition.

7. Learned Senior Counsel would further contend that in view of the law laid down by the Hon'ble Apex Court, as followed by this Court, it is not open for the respondents to contend to the contrary. The 2nd petitioner, who is similarly placed like the petitioners in the above three Writ Petitions, is entitled for being provided with employment by the 2nd respondent considering the request of the 1st petitioner to provide dependent employment to 2nd petitioner being his son.

8. The respondents, except stating that 2nd petitioner is born to the second wife of 1st petitioner, no material is placed before this Court to arrive at a different conclusion as was consistently taken by this Court in other Writ Petitions.

9. I have noted the contentions urged by the counsels appearing for the parties.

::4::

10. The Hon'ble Supreme Court in V.R.Tripathi (1 supra), while dealing with the issue relating to provision of compassion appointment to children of plural wife of deceased employee and the circular of the respondent therein stating that compassionate appointment cannot be granted to children born from second marriage of deceased employee, held as under:

"13. Compassionate appointment, in other words, is not founded merely on parentage or descent, for public employment must be consistent with equality of opportunity which Article 16 of the Constitution guarantees.....

14. The real issue in the present case, however, is whether the condition which has been imposed by the circular of the Railway Board under which compassionate appointment cannot be granted to the children born from a second marriage of a deceased employee (except where the marriage was permitted by the administration taking into account personal law, etc) accords with basic notions of fairness and equal treatment, so as to be consistent with Article 14 of the Constitution. While answering this issue, it would be necessary to advert to the provisions of Section 16 of the Hindu Marriage Act, 1955 which provide thus:

'16. Legitimacy of children of void and voidable marriages.--(1) Notwithstanding that a marriage is null and void under Section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void

otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under Section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been ::5::

dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity. (3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents.'

15. In sub-section (1) of Section 16, the legislature has stipulated that a child born from a marriage which is null and void under Section 11 is legitimate, regardless of whether the birth has taken place before or after the commencement of amending Act 68 of 1976. Legitimacy of a child born from a marriage which is null and void, is a matter of public policy so as to protect a child born from such a marriage from suffering the consequences of illegitimacy. Hence, though the marriage may be null and void, a child who is born from the marriage is nonetheless treated as legitimate by sub-section (1) of Section 16. One of the grounds on which a marriage is null and void under Section 11 read with clause (i) of Section 5 is that the marriage has been contracted when one of the parties had a spouse living at the time of marriage. A second marriage contracted by a Hindu during the subsistence of the first marriage is, therefore, null and void. However, the legislature has stepped in by enacting Section 16(1) to protect the legitimacy of a child born from such a marriage. Sub-section (3) of Section 16, however, stipulates that such a child who is born from a marriage which is null and void, will have a right in the property only of the parents and none other than the parents.

16. The issue essentially is whether it is open to an employer, who is amenable to Part III of the Constitution to deny the benefit of compassionate appointment which is available to other legitimate children. Undoubtedly, while designing a policy of compassionate appointment, the State can prescribe the terms on which it can be granted. However, it is not open to the State, while making the scheme or rules, to lay down a condition which is inconsistent with Article 14 of the Constitution. The purpose of compassionate appointment is to prevent destitution and penury in the family of a deceased employee. The effect of the circular is that irrespective of the destitution which a child born from a second marriage of a deceased employee may face, compassionate appointment is to be ::6::

refused unless the second marriage was contracted with the permission of the administration. Once Section 16 of the Hindu Marriage Act, 1955 regards a child born from a marriage entered into while the earlier marriage is subsisting to be legitimate, it would not be open to the State, consistent with Article 14 to exclude such a child from seeking the benefit of compassionate appointment. Such a condition of exclusion is arbitrary and ultra vires.

17. Even if the narrow classification test is adopted, the circular of the Railway Board creates two categories between one class of legitimate children. Though the law has regarded a child born from a second marriage as legitimate, a child born from the first marriage of a deceased employee is alone made entitled to the benefit of compassionate appointment. The salutary purpose underlying the grant of compassionate appointment, which is to prevent destitution and penury in the family of a deceased employee requires that any stipulation or condition which is imposed must have or bear a reasonable nexus to the object which is sought to be achieved. The learned Additional Solicitor General has urged that it is open to the State, as part of its policy of discouraging bigamy to restrict the benefit of compassionate appointment, only to the spouse and children of the first marriage and to deny it to the spouse of a subsequent marriage and the children. We are here concerned with the exclusion of children born from a second marriage. By excluding a class of beneficiaries who have been deemed legitimate by the operation of law, the condition imposed is disproportionate to the object sought to be achieved. Having regard to the purpose and object of a scheme of compassionate appointment, once the law has treated such children as legitimate, it would be impermissible to exclude them from being considered for compassionate appointment. Children do not choose their parents. To deny compassionate appointment though the law treats a child of a void marriage as legitimate is deeply offensive to their dignity and is offensive to the constitutional guarantee against discrimination."

11. In view of the above authoritative pronouncement of the Hon'ble Supreme Court, the reason given by the respondents in proceedings dt.13-08-2019 for rejecting the request of 1st petitioner by referring to National Coal Wage Agreement (NCWA) provision of dependent employment viz., "son born to second wife not legally ::7::

married to the employee is not eligible for employment" cannot be held to be a valid stipulation for the impugned proceeding to be sustained.

12. Thus, having regard to the law laid down by the Apex Court and the consistent view of this Court in similar matters, and for reasons alike as stated therein, the impugned proceedings Ref.No.CRP/PER/WEL/DE/4305 dt.13-08-2019 issued by 2nd respondent and proceedings Ref.No.NMR/KK-1/W/O14/1258 dt.01-09-2019 issued by 4th respondent cannot be sustained and are accordingly set aside; since the impugned proceedings are set aside; and the respondents are directed to consider the case of 1st petitioner for granting dependent employment to the 2nd petitioner and pass orders in accordance with law within a period of six (06) weeks from the date of

receipt of a copy of this order.

13. Accordingly, the Writ Petition is allowed. No costs.

14. Consequently, miscellaneous petitions, pending if any, shall stand closed.

_____ T.VINOD KUMAR, J Date: 09-03-2022 Vsv